

Ganga Prasad Soni v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 May 2016 · Writ-C No. 22450 of 2016 · **Writ disposed; consumer relegated to clause 6.5(b); recovery stayed four weeks.**

HEADNOTE

A writ challenging recovery of electricity dues and the accuracy of the underlying bill was disposed of because disputed questions of fact arise and clause 6.5(b) of the U.P. Electricity Supply Code, 2005 supplies a complaint to the competent authority. The consumer was given one week to complain; the authority two weeks to decide; recovery stayed for four weeks or until that decision, whichever earlier; connection to be restored forthwith after deposit of the amount.

FACTUAL SUMMARY

Ganga Prasad Soni approached the Allahabad High Court by a writ petition challenging recovery proceedings initiated by the respondent electricity corporation for outstanding dues. He disputed the correctness of the bill that formed the foundation of the recovery. The State of Uttar Pradesh and the corporation were arrayed as respondents; counsel for the petitioner and for respondent nos. 2 and 4 were heard. No earlier forum order under the Supply Code is recited. The consumer sought to have the billed demand examined and the recovery restrained.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy-complaint

HOLDING

Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 provides a complaint to the competent authority where the consumer disputes the accuracy of the bill. Because disputed questions of fact were involved and that statutory remedy existed, the writ challenging recovery of outstanding dues was disposed of with liberty to complain under clause 6.5(b) within one week, the authority being directed to consider and pass orders in accordance with law within two weeks. Recovery remained in abeyance for four weeks or until disposal of the complaint, whichever was earlier, and was to abide that decision. After the petitioner deposited the amount, the electricity connection was to be restored forthwith. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND THE RECOVERY DEMAND

The Court declined to examine disputed questions of fact and left them to the clause 6.5(b) authority. ¶ 1